

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. and OCEAN NETWORK EXPRESS
(NORTH AMERICA) INC. –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)**

**OCEAN NETWORK EXPRESS (NORTH AMERICA), INC. RESPONSE TO BUREAU
OF ENFORCEMENT MOTION TO DISMISS WITHOUT PREJUDICE**

Ocean Network Express (North America), Inc. (ONE NA) hereby responds to the Bureau of Enforcement (BOE) Motion to Dismiss ONE NA from the proceeding filed on April 22, 2022.

ONE NA welcomes and supports this long overdue Motion, as it has been clear that ONE NA should never have been named as a Respondent in the first place. We do, however, have a few, brief comments.

First, ONE NA is not clear what BOE intends by seeking to dismiss ONE NA “without prejudice.” If it means that the Federal Maritime Commission (FMC) could initiate a new Order of Investigation and Hearing against ONE NA about the same matter, we acknowledge that the FMC has the authority to do that, although the same, insuperable issues of personal and subject matter jurisdiction would apply. We assume BOE is not suggesting that ONE NA could be brought back into this very proceeding, by motion or otherwise, but we respectfully seek the Presiding Officer’s clarification on this point.

Secondly, ONE NA vigorously denies BOE’s assertion in the instant Motion that it has been obstructive and in any way unwilling to provide discovery. BOE has long had in

hand everything necessary to decide whether to pursue ONE NA. BOE has only belatedly recognized that ONE NA should not have been included as a putative Respondent and that no amount of discovery would enable it to spin straw into gold.

Finally, should the Presiding Officer grant BOE's instant Motion, ONE NA thereupon agrees to withdraw its pending motion to compel discovery from BOE.

DATED: April 25, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

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**ATTORNEYS FOR OCEAN NETWORK
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CERTIFICATE OF SERVICE

I certify that on the 25 day of April, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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